

**Template for a Federal Supply Schedule (FSS)
Limited-Sources Justification**

Completion Instructions: HHS has established a standard template for the preparation of a Limited-Sources Justification (LSJ) pursuant to FAR Subpart 8.4. This template is for use with orders issued under the Federal Supply Schedule (FSS) program where the value exceeds simplified acquisition threshold and competition is restricted: (1) to fewer schedule contractors than required in **FAR 8.405-1** or **8.405-2**, or (2) to an item peculiar to one manufacturer. See **FAR Subpart 8.4** for additional guidance. This template is not for use with acquisitions other than those under FAR Subpart 8.4.

Tailor all aspects of this template to the individual acquisition. Consult [FAR 8.405-6](#) for guidance.

Delete the highlighted portions of this document prior to signature. Do not include these instructions in the final document or contract file.

**FEDERAL SUPPLY SCHEDULE
LIMITED-SOURCES JUSTIFICATION**

Acquisition Title:	AUTOMATED CONTROLLED SUBSTANCE CABINET
Agency:	IHS
Acquisition Year:	2025
Author:	DEBRA RETHWISCH, COR

2. Description of Action:

Nature:	☒ New Requirement	☐ Follow-on Requirement	
	☐ Modification to Existing Purchase Order/Contract Number:		
Pricing:	☒ Firm-Fixed Price	☐ Time & Materials	☐ Cost
	☐ Other:		
Funds:	☐ OMA	☒ Other Funds:	J464W20 - WE-MA-PHARMACEUTICAL SERVICES

<For each proposed contractor if more than one (e.g., brand name):>

Name of Proposed Contractor(s):	OMNICELL INC 380924
Street Address:	1900 E 9TH STREET
City, State, Zip:	CLEVELAND, OH 44114

Add Contractor

Remove Contractor

3. Description of Supplies or Services:

CABINET INSTALLED IN PINE POINT PHARMACY AND VIRTUAL SERVER IN WHITE EARTH ARE LEASED FROM OMNICELL. OMNICELL NO LONGER LEASES, THEREFORE PHARMACY WILL NEED TO PURCHASE. LEASE BUYOUT OF 1/4 HEIGHT CABINET AND DRAWERS INSTALLED IN PINE POINT PHARMACY AND VIRTUAL SERVER LOCATED IN WEHC IT DEPARTMENT VIRTUAL ENVIRONMENT. CABINET USED TO SECURELY STORE CONTROLLED SUBSTANCES IN PP PHARMACY, KEEPING PHARMACY IN COMPLIANCE WITH INDIAN HEALTH MANUAL (IHM) PART 3, CHAPTER 7. OMNICELL CABINETS IN WHITE EARTH (WE), NAYTAHWAUSH (NTW) AND PINE POINT (PP) ALL CONNECT AND OPERATE OFF THE VIRTUAL SERVER.

The estimated value of the proposed action, including all options, is \$

38,281.00

Briefly describe the supplies or services to be provided, including make & model number where appropriate. Indicate whether the item to be procured is peculiar to one manufacturer (e.g., a particular brand name, product, or a feature of a product, peculiar to one manufacturer). If applicable, include quantities of supplies or period of performance for services. Provide information for any options included in the order. If the action is a modification to an existing order, distinguish clearly between the work covered by the basic order and the work to be obtained by the proposed modification.

PP'S OMNICELL IS UNDER PO 75H70520F80004, EXPIRES 03.31.2025. OMNICELL ITEMS FOR LEASE BUYOUT ARE ONE CONFIGURABLE DRAWER, ONE METAL LOCKING DRAWER, 1/4 HEIGHT CABINET, ONE VIRTUAL SERVER AND REMOTE ACCESS WIN2016 UPG.

4. Authority:

- ☒ **ORDER AGAINST FSS:** Authority of the Multiple Award Schedule Program, Title III of the Federal Property and Administrative Services Act of 1949 (41 U.S.C. 251, *et seq.*); Title 40 U.S.C. 501, Services for Executive Agencies; and Section 803 of the National Defense Authorization Act of 2002 (PL 107-107) and implemented by [FAR 8.405-6](#). Mark the applicable exception and for each discuss how the cited authority applies in accordance with FAR 8.405-6(c)(2)(iv).
- ☐ An urgent and compelling need exists, and following the procedures would result in unacceptable delays ([FAR 8.405-6\(a\)\(1\)\(i\)\(A\)](#));

- ☐ Only one source is capable of providing the supplies or services required at the level or quality required because the supplies or services are unique or highly specialized ([FAR 8.405-6\(a\)\(1\)\(i\)\(B\)](#)); or

- ☐ In the interest of economy and efficiency, the new work is a logical follow-on to an original Federal Supply Schedule order provided that the original order was placed in accordance with the applicable Federal Supply Schedule ordering procedures. The original order or BPA must not have been previously issued under sole-source or limited sources procedures ([FAR 8.405-6\(a\)\(1\)\(i\)\(C\)](#)); or

- ☒ An item peculiar to one manufacturer can be a particular brand name, product, or a feature of a product, peculiar to one manufacturer). A brand name item, whether available on one or more schedule contracts, is an item peculiar to one manufacturer. ([FAR 8.405-6\(b\)](#));

Describe in detail why a particular brand name, product, or a feature of a product, peculiar to one manufacturer must be used. Also, describe in detail the existence of other than the "Name Brand" product and discuss why they cannot be used.

OMNICELL 1/4 HEIGHT CABINET IS CURRENTLY INSTALLED IN PP PHARMACY. STRUCTURAL CHANGES WERE MADE IN 2020 IN THE PHARMACY TO ACCOMIDATE THIS CABINET. CABINET IS VERY HEAVEY AND CUMBERSOME. RATHER THAN REMOVE THE CURRENT CABINET AND REPLACE IT WITH THE SAME MODEL CABINET WOULD BE A UNNESSARY UNDERTAKING. LEASE BUYOUT IS THE BEST OPTION. TO GO WITH A DIFFERENT VENDOR WOULD NOT BE FISCALLY RESPONSIBLE AS OMNICELL IS ALSO INSTALLED IN WE AND NTW. A DIFFERENT VENDOR WOULD REQUIRE AN ADDITIONAL SERVER AND POSSIBLY ADDITIONAL

STRUCTURAL CHANGES TO THE PP PHARMACY ALONG WITH TRAINING STAFF ON A NEW SYSTEM.

5. Market Research:

Describe the extent of the market research conducted among the schedule holders and the results, or a statement of the reason that market research was not conducted. Brand name specifications shall not be used unless the particular brand name, product, or feature is essential to the Government's requirements, and market research indicates other companies' similar products, or products lacking the particular feature, do not meet, or cannot be modified to meet, the agency's need.

MARKET RESEARCH ATTACHED.

6. Actions to Increase Competition:

Describe the actions, if any, the agency may take to remove or overcome any barriers that led to the restricted consideration prior to any subsequent acquisition for the supplies or services is made. If no such actions have been taken, explain why.

NO ACTIONS TAKEN TO INCREASE COMPETITION. OMNICELL HAS BEEN INSTALLED IN WE SINCE 2012 AND IN NTW AND PP SINCE 2020. TO BRING IN A DIFFERENT VENDOR FOR PP WOULD MEAN AN ADDITIONAL SERVER AND STAFF TRAINING.

7. Any other facts supporting the justification:

OMNICELL HAS BEEN INSTALLED IN WE SINCE 2012, AND IN PP AND NTW SINCE 2020. IN 2024, OMNICELL 2 CELL CABINETS WERE PURCHASED FOR WE AND NTW PHARMACIES, REPLACING THE LEASED OMNICELL CABINETS. PP, BEING A SMALLER PHARMACY, STILL HAS THE LEASED 1/4 HEIGHT CABINET. THIS CABINET HAS OPTIMAL ROOM FOR STORING CONTROLLED SUBSTANCES IN PP. OMNICELL NO LONGER LEASES, ALL PRODUCTS MUST BE PURCHASED. SERVICE/SUPPORT WILL STILL BE A MONTHLY CHARGE.

8. Technical / Requirements Certification: By my signature below, I certify that the supporting data under my review which is included in this Limited-Sources Justification is accurate and complete.

Program Manager

Name:	DEBRA RETHWISCH
Position Title:	COR
Email address:	debra.rethwisch@ihs.gov
Phone:	218-983-6335

Program Manager Supervisor (or one level above Program Manager)

Name:	CODY LEFF
Position Title:	PHARMACY DIRECTOR
Email address:	cody.leff@ihs.gov
Signature	Cody J. Leff -S  Digitally signed by Cody J. Leff -S Date: 2025.02.19 15:58:31 -06'00'
Date:	Feb 19, 2025

9. Best Value Determination. By my signature below, after review of the relevant documents, I have determined that the order subject to this Limited-Sources Justification represents the best value for the Government as set forth in FAR 8.404(d), and constitutes a **fair and reasonable price**. The basis for my determination is as follows:

Describe in detail the basis for the determination that this order providers the best value, and that the price is fair and reasonable. Attach and/or summarize applicable market research, commercial prices lists, comparable GSA schedule pricing or other markers that were used in this determination.

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10. Contracting Officer's Approval (Required for proposed contract not to exceed \$700,000 (value calculated including all options)): I hereby certify that this justification is accurate and complete to the best of my knowledge. I approve this sole source justification subject to availability of funds, and provided that the services and supplies herein described have otherwise been authorized for acquisition.

Name:	JENNIFER RICHARDSON	Phone:	
Signature:	Jennifer L. Richardson -S  Digitally signed by Jennifer L. Richardson -S Date: 2025.03.11 06:54:28 -05'00'	Date:	Mar 11, 2025

11. Legal Review:
All J&As equal to or greater than \$68 million must have a legal review from the General Law Division of the Office of the General Counsel prior to sending it to the Department.

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12. OPDIV Competition Advocate Approval (Required for proposed contract over \$700,000 but not exceeding \$13.5 million value calculated including all options)):
I have reviewed this justification and find that it adequately supports other than full and open competition.

Name:		Phone:	
Signature:		Date:	

13. Office of Small and Disadvantaged Business Utilization
I have reviewed this justification and find that it adequately supports other than full and open competition.

Name:		Phone:	
Signature:		Date:	

14. OPDIV HCA Approval (Required for proposed contract over \$13.5 million but not exceeding \$68 million value calculated including all options)):

Name:		Phone:	
Signature:		Date:	

(The below approval paragraph is required if the cumulative contract value, including all options, equals or exceeds \$68 million.)

HHS Senior Procurement Executive (SPE) Approval

Based on the foregoing justification, I hereby approve the procurement of (state supplies/services being procured) on an other than full and open competition basis pursuant to the authority of (state the full statutory authority and FAR cite and title, consistent with paragraph 4, e.g. 41 U.S.C. 251), as implemented by [FAR 8.405-6](#)), subject to the availability of funds, and provided that the services herein described have otherwise been authorized for acquisition.

Name:		Phone:	
Signature:		Date:	